

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

DECISION

Application no. 7116/10
UNION EUROPEENNE DES DROITS DE L'HOMME and Christos JOSEPHIDES
against Turkey

The European Court of Human Rights (Fourth Section), sitting on 2 April 2013 as a Chamber composed of:
Ineta Ziemele, *President,*
David Thór Björgvinsson,
Päivi Hirvelä,
Işıl Karakaş,
Paul Mahoney,
Krzysztof Wojtyczek,
Faris Vehabović, *judges,*
and Françoise Elens-Passos, *Section Registrar,*
Having regard to the above application lodged on 30 April 2010,
Having deliberated, decides as follows:

THE FACTS

1. The applicants are the UEDH ("*Union Europeenne Des Droits de L'Homme*") a non-profit making association based in Nicosia and Christos Josephides, a Cypriot and French citizen, born in 1944 and resident in Cyprus. The second applicant is the President and legal representative of the first applicant.

The circumstances of the case

2. The facts of the case, as submitted by the applicants, may be summarised as follows.

3. On 9 November 2010, with the intention of celebrating of the 20th anniversary of the fall of the Berlin Wall, a group of people, including the second applicant and, it appears, other members of the first applicant association, set out with the intention of demonstrating before the "Attila Wall" which was in the buffer zone between the Republic of Cyprus and the area occupied by Turkish forces known as the "Turkish Republic of Northern Cyprus" ("TRNC"), and thus showing their solidarity with the German people and seeking their help and support in obtaining the fall of the wall separating the Cypriot people. They had given notice of their peaceful demonstration to the press and the German embassy.

4. The second applicant and another member of the association carried a large European flag and four placards bearing slogans; leaflets were being handed out as they proceeded down Ledra Road. The demonstrators stopped 50 metres before the Cyprus checkpoint, which was 100 metres from the "TRNC" checkpoint. The applicant and the other member of the association continued past the checkpoint into the buffer zone, with the intention of placing the flag and placards on the walls within the zone. When they were some ten to fifteen metres from the "TRNC" checkpoint, security forces rushed out and seized them by force. They were taken into the security post and searched. Their mobile phones and identity documents were removed, their flag, placards and leaflets confiscated. After 45 minutes, the two men were released.

COMPLAINTS

5. The first applicant complained principally of interference with its freedom of expression and right to demonstrate, invoking Articles 10 and 11. It also invokes Article 5 (the arrest of its members), Article 13 (no effective remedy) Article 14 (discrimination against Greek Cypriots) and Article 1 of Protocol No. 1 (confiscation of its placards, flag and leaflets).

6. The second applicant complained under Article 3 that he had been seized by force, insulted and threatened and treated in a degrading and humiliating manner; under Article 5 that he had been unlawfully arrested; under Article 6 that he had not been brought before a judge where he could have protested his ill-treatment and the unlawful actions; under Article 8 that the police officers had taken his identity documents and mobile phone, and had time to copy the details therefrom; under Article 11 that he had been prevented from peacefully demonstrating in the buffer-zone; and under Articles 13 and 14 in conjunction with the above.

THE LAW

7. Insofar as the second applicant complains of treatment contrary to Article 3 of the Convention (prohibition of torture and inhuman or degrading treatment or punishment), the Court notes that he has given no details of any physical harm. Insofar as he refers to being manhandled and referred to in unflattering terms, it is not apparent that this treatment reached the minimum level of severity required to fall within the scope of Article 3 of the Convention. This complaint is rejected as manifestly ill-founded pursuant to Article 35 §§ 3 and 4 of the Convention.

8. Insofar as the second applicant complains of being unlawfully arrested under Article 5 of the Convention (protection of the right to liberty), the Court observes that on his own account of events he penetrated the UN buffer zone to within 10-15 metres of the "TRNC" checkpoint. It recalls that the buffer zone is a demilitarised zone set up between the "TRNC" areas and the Republic of Cyprus; it is under the supervision of UNFICYP (the United Nations Peacekeeping Force in Cyprus) which was set up by the United Nations Security Council with the mandate, *inter alia*, of supervising the de facto ceasefire that came into effect on 16 August 1974. Activities in the buffer zone can only be undertaken under permit from UNFICYP.

9. Given the purpose of the buffer zone and previous occasions on which failure to respect the buffer zone has led to loss of life and injury (see, for example, *Solomou and Others v Turkey*, no. 36832/97, 24 June 2008), the Court considers that the applicant's actions may in the circumstances have been perceived as provocative, confrontational and posing a risk to public order. It has found in previous cases that arrests made by the "TRNC" authorities in response to breaches of the peace and public order at or near the buffer zone could be regarded as having a legal basis under the Cypriot Criminal Code and Criminal Procedure Law and thus as "prescribed by law" (see *Foka v. Turkey*, no. 28940/95, 24 June 2008, *Asproftas v Turkey*, no. 16079/90, 27 May 2010, *Protopapa v Turkey*, no. 16084/90, 24 February 2009). Noting that in the present case the applicant was released after 45 minutes, the Court finds that the actions of the security forces in taking the applicant into custody may be regarded as a not disproportionate or excessive reaction to the incident, and accordingly justified under Article 5 §§ 1 (c) of the Convention. This complaint is rejected as manifestly ill-founded pursuant to Article 35 §§ 3 and 4 of the Convention.

10. Insofar as the applicants complain that they were unable to demonstrate as planned in the buffer zone contrary to Article 10 (freedom of expression) and Article 11 (freedom of assembly) of the Convention and even assuming that the applicant association has standing as a victim to complain of alleged interferences with the activities of its members, the

Court considers, in the circumstances where the first applicant and others sought to demonstrate in a highly sensitive area, did not suffer any physical harm and were detained for less than an hour, that any interference with their rights may be regarded in the circumstances as "prescribed by law" and justified to prevent disorder within the terms of the second paragraphs of both provisions.

This part of the application falls to be rejected as manifestly ill-founded pursuant to Article 35 §§ 3 and 4 of the Convention.

11. The remaining complaints of the applicants fail to disclose any appearance of a violation of the rights and freedoms set out in the Convention or its Protocols and fall to be rejected as manifestly ill-founded as a whole within the meaning of Article 35 §§ 3(a) and 4 of the Convention.

For these reasons, the Court by a majority

Declares the application inadmissible.

Françoise Elens-Passos	Ineta Ziemele
Registrar	President